

ORIGINAL**FILED**

OCT 07 2021

IN THE COURT OF APPEALS OF MISSISSIPPI
No. 2020-CP-01259-COA

OFFICE OF THE CLERK
SUPREME COURT
COURT OF APPEALS

MATTHEW REARDON
Appellant

v.

STATE OF MISSISSIPPI
Appellee

Rebuttal to
MOTION 20212650

On Appeal from the Circuit Court
of Lafayette County, Mississippi

APPELLANT'S REBUTTAL TO RESPONSE FROM THE STATE

ORAL ARGUMENTS REQUESTED

MATTHEW REARDON
Pro-Se Appellant
117 CR 401
Oxford, MS 38655
Telephone: (662) 205-6711
matt@mattreardon.com

COMES NOW The Appellant in this cause, MATTHEW REARDON, and enters his rebuttal to the response from State of Mississippi Attorney General's Office entered in this court on September 20, 2021. In further support of his motion for Peremptory Reversal and the State's response, the Appellant submits the following in rebuttal:

I.

Appellant raises the notion that while he submitted an appellant brief that required listed corrections needed, he did still submit his appellant brief. The brief submitted did in fact list manifest error committed on behalf of the State of Mississippi. The Appellee is attempting to have this appeal dismissed based on small technicality error, however, in their response failed to address or give answer to the manifest error stated regarding the deprivation of key due process rights of the appellant which have been raised.

II.

The first manifest error took place when Appellant was held nearly twice the allowable amount of time allotted for a criminal Defendant to be brought before a judge for an initial hearing in order for appearance bond to be set in lieu of an appearance bond not being issued at the time the warrant was issued. Established due process stated in rule 5.1 of the Mississippi Rules of Criminal Procedure addresses this in regards to individuals arrested pursuant to a warrant issued on a charging affidavit. Under Rule 5.1(c)(3), if a person is taken into custody, the person shall be taken without unnecessary delay, and in no event later than forty-eight (48) hours after arrest, before a judge who shall proceed with an initial appearance. If the person arrested is not taken before a judge within forty-eight (48) hours, the person detained shall be released on execution of an appearance bond in the minimum amount set pursuant to Rule 8 and directed to appear at a specified time and place. Rule 5.1(b)(3) conforms to the United States Supreme Court's holdings in *Gerstein v. Pugh*, 420 U.S. 103, 95 S. Ct. 854, 43 L. Ed. 2d 54 (1975), and *County of Riverside v. McLaughlin*, 500 U.S. 44, 111 S. Ct. 1661, 114 L. Ed. 2d 49 (1991).

III.

That not only was the above stated rule regarding setting the initial hearing egregiously ignored by the state of Mississippi, but the entire clause in that the minimum bond for release on the accused charge would have been \$5000 pursuant to Rule 8.1 with a maximum listed at \$50,000 for a crime with a maximum 10 years incarceration. Not only did Appellants accused crime see a maximum of half of that time, but the Judge set appellant's appearance bond at \$150,000.

A staggering 3x higher than a crime that would see twice the amount of time incarceration. Miss. R. Crim. P. 5.1(C)(2)(a) and Miss. R. Crim. P. 8.2 would support Appellant's position that bond was indeed set in a punitive way, violating appellant's 8th Amendment Rights that ensure bond is not set in a punitive way, as stated rules required at this point that appellant be released at the minimum amount, being \$5,000

IV.

Appellant affirms that he tried to assert he had exculpable evidence of his innocence at his initial hearing to which the judge advised him of his right to remain silent, however, never advised him of his right to a preliminary hearing in which he could properly introduce such evidence.

Miss. R. Crim. P. 5.2 states in felony cases the judge also must:

- (1) inform the defendant of the right to a preliminary hearing and the procedure by which that right may be exercised; and
- (2) When a defendant is charged with commission of a felony, the judge shall also: if requested, set the time for a preliminary hearing in accordance with Rule 6.1.

V.

Appellant was never advised of his right to a preliminary hearing along with one never being set within 14-days as required in Felony proceedings. This is not discretionary in that: *"If a preliminary hearing has not been commenced within fourteen (14) days as required by subsection (a), unless postponed as provided in subsection (d), the defendant shall be released on recognizance."* Miss. R. Crim. P. 6.1 Appellant was to be released on recognizance by the 15th day as subsection (d) did not apply to appellant. Unless the State can somehow demonstrate how the accused crime would be non-bailable and particularly with the exculpatory evidence of appellant's innocence to the accused crime appellant tried to introduce at the initial hearing before Judge Bell, the remaining 4-weeks incarceration amount to false imprisonment among a plethora of additional violations aggrieved by the appellant.

VI.

The errors committed by the state which in turn compounded and manifested further requires complete peremptory reversal of the original criminal cause (LK17-295) or at the bare minimum reversing the trial court's order on L20-316 and ordering that a trial be conducted as soon as possible so as not to aggrieve further irreparable injury to Appellant

VII.

That dismissing appellant's appeal would aggrieve irreparable harm upon Appellant given the facts and merits surrounding the unique series of events directly tied to this appeal, further excusing the state of its own neglect in refusing due process rights to the accused and further ignoring mandated rules in the Mississippi Rules of Criminal Procedure. This in turn would deny Appellant equal protections under the laws guaranteed under the State and Federal constitution based in whole upon state officials knowingly depriving appellant of key rights to begin with.

VIII

Appellant reaffirms the errors in this cause are some of the most manifest in nature and most certainly effected the outcome of this cause in pressuring appellant to plea out under immense stress, denying him rights, denying him justice, and compounding damages ever since. As such this matter meets all necessary required elements for peremptory reversal. Therefore, Appellant respectfully requests that this honorable court deny Appellee's unjustified request for dismissal, and expedite a vote on his motion for peremptory reversal at their soonest available opportunity in the interest of justice.

VIII

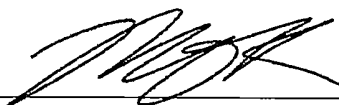
A party may move to set aside a void judgment pursuant to Rule 60(b)(4) more than six months after entry of the judgment if the delay in moving for relief was reasonable. See *Ladner v. Logan*, 857 So. 2d 764, 770 (Miss. 2003)

APPELLANT ATTACHES AS EXHIBIT A, A MOTION HE FILED 12/23/2020 UNDER MRCP RULE 60(b) WHICH TO DATE HAS BEEN IGNORED AND NOT RULED UPON BY THE TRIAL JUDGE. APPELLANT IS OF THE INTERPRETATION THAT THE JUDGE HAD AN OBLIGATION TO ISSUE RULING BASED UPON *SARTAIN V WHITE* 588 SO 2d 204, 211 WHICH STATES:

"The trial court has discretion to grant or deny a Rule 60(b) motion, unless the judgment is void, in which case the court is required to set aside the judgment"

A judgment is void if the trial court lacked jurisdiction over the subject matter or the parties or acted in a manner inconsistent with due process of law. See *Bryant, Inc. v. Walters*, 493 So. 2d 933, 938 (Miss. 1986)

SUBMITTED THIS 6TH DAY OF OCTOBER, 2021



MATTHEW REARDON
APPELLANT (PRO-SE)

CERTIFICATE OF SERVICE

I, Matthew Reardon, do hereby certify that I have provided a copy of this document to the Clerk of the Court, and the following listed persons:

Honorable John Kelly Luther
Circuit Court Judge
102 N. Main Street, Ste. F
Ripley, MS 38663

Honorable Ben Creekmore
District Attorney
111 East Main Street
New Albany, MS 38652

Barbara Byrd
Special Assistant Attorney General
P.O. Box 220
Jackson, Mississippi 39205-0220

THIS, the 6th day of October, 2021.

Matt Reardon
Appellant (pro se)



IN THE CIRCUIT COURT OF LAFAYETTE COUNTY, MISSISSIPPI

LAFAYETTE COUNTY
FILED

MATTHEW OLIVER REARDON DEC 23 2020

JEFF BUSBY
CIRCUIT CLERK

CAUSE NUMBER L20-316

V.

BY:

DC

THE STATE OF MISSISSIPPI

Motion for Relief from Judgment or Order

Comes now before the court Matthew Reardon, the petitioner/plaintiff, and respectfully moves this court for relief pursuant to Rule 60 of The Mississippi Rules of Civil Procedure. Petitioner acknowledges that he has an open appeal to the MS Supreme Court based on a denial by this court on petitioner's Post Conviction Relief Motion that he filed on July 7, 2020 (Petition, Exhibits, and Denial Attached as EXHIBIT A). The first denial by this court came on July 30, 2020 to which petitioner refiled a timely Motion for Re-Hearing under MRCP Rule 59 Before the Honorable Judge Kent Smith due to this cause being assigned to Judge Kent Smith. The trial court summarily denied this Motion for Re-Hearing under MRCP Rule 59 which was filed based upon newly discovered evidence and a plethora of violations aggrieved by petitioner due to the malice and negligent acts of the Defendant (Motion and Denial Attached as EXHIBIT B). Up until August 12, 2020 the assigned Judge was newly appointed Circuit Judge Kent Smith, yet for reasons unbeknownst to petitioner, Judge John Kelly Luther continued denying each of petitioner's motions and petitions despite having upfront knowledge of the fraudulent activity in Lafayette County which implemented many. It was AFTER the motion for Recusal was filed on August 12, 2020 that the assigned Judge on this cause was FRAUDULENTLY changed to Judge John Kelly Luther. This is far from a Clerical Error due to the assertion's petitioner had made and provided evidence to regarding conflict of interest

warranting recusal due to Judge John Kelly Luther's upfront knowledge of crimes that were committed and continued to be committed. The denial of petitioner's motion for recusal filed 8/12/2020 along with supporting exhibits are attached as EXHIBIT C. Finally, the denial of petitioner's motion to compel and preserve evidence filed August 26, 2020 along with supporting exhibits is attached hereto as EXHIBIT D. Petitioner now comes back before this trial court one last time prior to the appellate procedure commences and files this Motion for Relief from Judgement or Order citing Rule 60(b) which allows relief to be granted to the petitioner in the occurrence of Mistakes; Inadvertence; Newly Discovered Evidence; Fraud, etc.

JURISDICTION AND BASIS FOR MOTION AND CLAIM

Even though Petitioner has a pending appeal to the MS Supreme Court, petitioner would demonstrate that he is not required to take leave from the appellate court. MRCP Rule 60 states the following to wit: "Leave to make the motion need not be obtained from the appellate court unless the record has been transmitted to the appellate court and the action remains pending therein" *Rule 60 - Relief from Judgment or Order*, Miss. R. Civ. P. 60. The petitioner in this cause brings this motion asserting the following meritorious reasons this trial court should grant relief under Rule 60: (1) fraud, misrepresentation, or other misconduct of an adverse party, (3) newly discovered evidence which by due diligence could not have been discovered in time to move for a new trial under Rule 59(b), and (6) any other reason justifying relief from the judgment. It is the opinion of the petitioner that the fatal errors that occurred which the Defendant bears the brunt if not sole responsibility for are incurable and in turn have rendered the Judgement in the original criminal cause LK17-295 to be void and invalid. where the only relief that could possibly remedy the fraud and misconduct committed would be a complete reversal of the plea and judgement or the setting of a hearing on facts and evidence. Petitioner further affirms that he has continued to be

victimized by false accusations and frivolous legal proceedings initiated to harass, delay, and ultimately influence other legal proceedings including this one and that Petitioner has been refused access and visitation to his minor child on knowingly false statements made by Phyllis Crowder-Kester and her attorneys. Petitioner has provided evidence of a plethora of crimes actively being committed which rise to criminal conspiracy, RICO, and The Filing False Instruments which shows the intentional commission of Fraud. Defendant has refused to provide petitioner the equal protections of the laws under the 14th amendment of the United States Constitution while adamantly refusing to allow an evidentiary hearing or even examining and ascertaining the jaw dropping facts of fraud being committed and refusing to reprimand those who are responsible for everything. Most appalling is that the Defendant in this cause has seemingly praised its actors for treasonous crimes against humanity which the actions detailed out have led to by Defendant refusing to contain and cure its default and defect against not only its own established rules, laws, and state constitution but the United States Constitution which petitioner swore a lifelong oath to his country to protect and defend. It is for these reasons listed that petitioner conveys in the most respectful yet adamant of ways that denying him relief he seeks under the facts and valid reasons listed in this motion and encompassing this entire case which the Defendant chose to initiate on false pretenses would completely deny him of the equal protections under the laws afforded by the 14th Amendment to the United States Constitution. This in turn would aggrieve permanent and irreparable harm on the petitioner and his family, demonstrating a complete refusal by the Defendant to act ethically and in a morally satisfying way, forever severing all public trust and integrity. Should this motion be labeled "not well taken" and "denied" with the others, Petitioner stands ready to file a Federal complaint detailing out all crimes committed against the petitioner, and seeking Federal Intervention and Protection under the laws of the United States of America should the Defendant choose to continue denying petitioner the equal protections under the laws of the State and refusing

him the right to not only restore his life destroyed by way of collusion and lies, and ensuring the truly guilty parties are brought to justice. Petitioner hereby conveys unto this trial court the following reasons under Rule 60 movant is entitled to relief:

**1) FRAUD COMMITTED BY LAFAYETTE COUNTY OFFICIALS AND EMPLOYEES BY WAY OF
INTENTIONALLY DEPRIVING PETITIONER IN THIS CAUSE OF DUE PROCESS RIGHTS**

- a) MRCP Rule 5.1(b)(3) states if a person is taken into custody, the person shall be taken without unnecessary delay, and in no event later than forty-eight (48) hours after arrest, before a judge who shall proceed with an initial appearance.
- b) The cited rule goes on to state If the person arrested is not taken before a judge within forty-eight (48) hours, the person detained shall be released on execution of an appearance bond in the minimum amount set pursuant to Rule 8 and directed to appear at a specified time and place. Rule 5.1(b)(3) conforms to the United States Supreme Court's holdings in *Gerstein v. Pugh*, 420 U.S. 103, 95 S. Ct. 854, 43 L. Ed. 2d 54 (1975), and *County of Riverside v. McLaughlin*, 500 U.S. 44, 111 S. Ct. 1661, 114 L. Ed. 2d 49 (1991).
- c) Due Process rights entitle the defendant in a cause receive a preliminary hearing to determine if there is enough evidence warranting the defendant to stand trial..Petitioner was never advised of his right to a preliminary hearing. Due to it taking twice the allowable time to bring petitioner before a judge for an initial appearance, Petitioner was entitled to his bail being set at the minimum amount on the chart in Rule 8, which is \$5,000, NOT \$150,000. However, Rule 6.1 states that if a preliminary hearing is not commenced within fourteen (14) days as required by subsection (a), and is not postponed as allowed by subsection (d), the defendant shall be released on recognizance, unless the offense is non-bailable or release is prohibited by Article 3, Section 29(2) of the Mississippi Constitution of

1890.THEREFORE, Due to petitioner never being afforded a preliminary hearing, nor a preliminary hearing being set within 14 days, The State had an obligation to Release on Recognizance, further directing petitioner to appear at a specified time and place pursuant to MRCP Rule 5.1(b)(3). This is not an opinion and it is not a discretionary rule that Defendant can pick and choose when to use, but rather this is a statement in fact and is evident by the wording in Rule 6.1 "The Defendant SHALL be released on recognizance.

- d) The fact that petitioner was never allowed the opportunity upfront to provide proof of his innocence or obtain a lower bond amount to regain his freedom to provide for his family is gravely concerning. This is most certainly a mitigating factor which provided an unfair, unethical, and unscrupulous advantage to the State, while proving to be highly prejudicial to petitioner and is the sole reason that petitioner pled out under coercion and duress at the advisement and misrepresentation of his attorney.

**2) PETITIONER WAS DENIED CERTAIN DUE PROCESS RIGHTS GUARANTEED TO ALL CITIZENS
UNDER STATE AND FEDERAL LAWS**

- a) Movant/Petitioner was unlawfully held, restricted, suppressed, and confined in the Lafayette County Detention Center from the time of his arrest, May 26, 2017 until July 6, 2017 when he pled out to the accused crime under duress at the advisement of his attorney. Petitioner received an initial/bond hearing on May 30, 2017. Defendant was in violation of MRCP Rule 5.1(b)(3) by it not bringing petitioner before the court for an initial appearance within 48 hours for an appearance bond to be set and in turn steered its own favorable outcome by keeping petitioner's appearance bond set at \$150,000 for the entire 6 weeks of Petitioner's confinement conveying a completely helpless and hopeless feeling upon petitioner whom needed to be released in order to provide care for his minor child

- b) Petitioner was not allowed to speak to offer concrete evidence of his innocence, and further petitioner was DENIED the opportunity to obtain a lower bond amount that fell within the established guidelines that the petitioner or his family could afford. Movant's bond was set three times higher than maximum guidelines allowed despite the State of Mississippi not producing so much as a single piece of evidence suggesting it had a valid claim. Petitioner in this cause asserted he had evidence to prove his innocence which should have been heard and examined up front and most certainly at a Preliminary Hearing. Unfortunately for the petitioner, he never was afforded a Preliminary Hearing whether it be through the sole fault of the State, or a shared fault of the petitioner's appointed legal counsel.
- c) A Habeas corpus petition was filed by the public defender commanding the sheriff to bring petitioner before the court to show just cause for the illegal confinement of petitioner, and while the petition was approved to proceed in forma pauperis, petitioner was never brought before the court and was further illegally confined for an additional 4 weeks.
- d) Petitioner was never made aware of this Habeas petition ever being filed until nearly 6 months after he plead out to free himself for the sake of his child and his sanity after being unlawfully held for a crime that was never truly committed. This amounts to misrepresentation by petitioner's council and petitioner has been requesting answers to no avail making the petitioner question whether fraud had occurred here as well, yet unsure where the true responsibility and liability falls.
- e) All requests by petitioner to have his bond lowered to a constitutionally fit amount went completely ignored after being given a bond amount that was three times higher than the

maximum guidelines established less than a year prior by way of the Mississippi Supreme Court. Movant/Petitioner never caused any physical harm to anyone and never had been accused of a felony crime prior to this allegation.

- f) That the assigned judge on Civil Cause # L20-316 was fraudulently altered from Judge Kent Smith to Judge John Kelly Luther despite contentious evidence showing that this Circuit Court Judge had upfront knowledge of the bizarre and uncharted criminal acts committed yet continued to insist on ruling on petitioner's motions and petitions only to deny them, say they were not well taken, and even referencing to a motion to compel and preserve evidence as moot despite some of the most serious and concerning claims asserted.
- g) Movant/Petitioner had pending ongoing litigation against Lafayette County due to a highly contestable arrest made May 1st, 2017 when movant was arrested for disorderly conduct for standing on public property holding the then state flag of Mississippi. Petitioner states this cause stemmed from a mutually beneficial arrangement which provided benefit and shielded Lafayette County Sheriff's Department and Deputy Timmy Pruitt from liability stemming from the May 1st 2017 Arrest made. At the same time, it accomplished the intended goal of Rhea and Robyn Tannehill, effectively silencing petitioner through taking out an emergency injunction over constitutionally protected activity along with their own embellishments and interpretations of certain things Petitioner had said which NEVER conveyed a physical threat and in referenced the reporting of serious crimes to the proper authorities which was in fact done. All of this done in order to prevent petitioner from speaking and addressing the board of aldermen at City Hall on June 6, 2017 (The Day Robyn Tannehill was elected Mayor of Oxford) which petitioner was slotted in advance to speak at the conclusion of Joey East in

order to petition the Government for a redress of grievances, an absolutely key part of the first amendment that keeps America a "Free" nation that repels tyranny. Evidence of petitioner slotted in advance to speak is attached as EXHIBIT E.

- h) Movant states that it is this reason along with his child and girlfriend at the time which would have easily shown and conveyed the fact that movant/petitioner was not a flight risk, not to mention movant is a USMC Veteran that has never had any prior history of being a flight risk. **Therefore, it is entirely the impression of the movant that bond was used in a punitive way to influence an outcome of a sham legal proceeding which was initiated by Lafayette County (State of Mississippi), it's employees, along with elected and appointed officials under knowingly false pretenses by a Justice Court Judge (Carolyn Bell) whom has had a history of setting bonds on the lower end of the bond guidelines.**
- i) The fact that movant was interrupted by Judge Bell and advised of his fifth amendment rights on two separate occasions when he tried to show information upfront which would show the impossibility of movant to have committed the alleged crime should concern and frighten every American. Petitioner asserts in complete confidence what all precluding evidence would demonstrate a clearly shown political attack on petitioner by way of criminal conspiracy, racketeering, organized crime, and the successful deprivation and continued deprivation of the petitioner's rights. Petitioner/Movant states that his life was completely ruined, and millions of splinters sent ripping through the surrounding areas at the hands of an extortionist scheme which has perpetuated itself by ways of Petitioner's ex-girlfriend and mother of his child initiating additional legal proceedings which she, her attorneys, and the state of Mississippi know to be false yet have allowed her to continue to get away with making the Defendant, the State of Mississippi complicit in the continued fraud and attempts to frame an innocent American whom doubles as a USMC Veteran.

- j) Petitioner asserts this conduct and behavior is dangerous, treasonous, and downright constitutionally damning. Even more concerning is the fact that all evidence shows petitioner's innocence in which Defendant abused its own system, refused to follow its own rules laid out, insisted on carrying its scheme against petitioner regardless of who witnessed the commission of its own crimes and regardless of how blatantly obnoxious, highly prejudicial, overly oppressive, and tyrannically suppressive it attacked and inflicted irreparable harm on petitioner which has had far reaching consequences. After being unlawfully held captive in the Lafayette County Detention Center for six weeks' time, petitioner was coerced by his legal counsel (at the time) Brennan Horan to plea out in order to get out and avoid being "Railroaded" by additional charges that the state allegedly was going to start "piling on" in order to try to get a quick yet highly immoral win despite indisputable evidence being brought to the attention of Petitioner's attorney whom looking back now would appear to have been "Bought" or "Paid For" to help influence a favorable outcome. Especially when this attorney claimed to have gone on "quail hunts with Judge Luther" and went to law school with Rhea Tannehill, further asserting that he "knew him well".
- k) That Petitioner's Guilty plea was involuntary due to a denial of his due process rights as guaranteed by the United States and State of Mississippi Constitutions, thus making his plea of guilty a violation of the laws of the State of Mississippi That Petitioner received inadequate representation by his legal counsel on record, in which adequate counsel representation likely would have resulted in an outright dismissal of the State's charge. Furthermore, petitioner only met with his legal council one time and no discovery motion was ever requested by Petitioner's legal counsel. That the state has refused to comply with a Freedom of Information Act Request for information regarding the phone call received on May 24, 2017 which through the state's own admission on a more recent public records request ultimately led to the charge being levied against the petitioner.
- l) Movant re-asserts by way of Fraud and collusion that this entire case has been tainted and manipulated in a plot that has continued to Deprive Petitioner of his Rights

m) Finally, despite the alleged rights deprivation, there exists additional evidence of material facts, not reasonably discoverable at the time involuntary plea was given and not previously presented at that time, which requires vacation of the conviction or sentence in the interest of justice.

PETITIONER STATES IN SUMMARY

It's more than a coincidence that all of this transpired when assessing the factual evidence surrounding it. Petitioner was given a bond FAR outside of established guidelines exactly 7 days prior to the soon to be incoming mayor's election in order to help ensure that petitioner remained locked away, suppressed, and unable to fulfill his constitutional duty. Petitioner was given what all impressions gave off as a "forced plea deal" exactly 7 days after Tannehill was sworn into office and assumed command as Mayor. Petitioner had to agree to five years supervised probation which encompassed a banishment order exiling him from Oxford and Lafayette County for a period of 5 years, AND a covenant to not sue Lafayette County, its officials, its employees, The City of Oxford, its officials, its employees, Sheriff Buddy East or any of his duly appointed deputies, as well as the Victim/Claimants Todd and Ashley Lynch. This effectively barred petitioner from suing for anything relating to LK17-295 or the prior matter involving the May 1st, 2017 arrest made. Petitioner poses before this court the obvious question of WHY would that be mandated if foul play wasn't involved and how many other cases it is aware of where the person charged had to agree not to sue the person claiming they were put in fear of their life? Especially when the petitioner didn't even own an AR-15 or any type of rifle or long gun, and only possessed a 40cal Taurus Pistol until May 20th, 2017. This has been the most corrupt, disgusting showing of force and a blatant abuse of law enforcement appearing more like mob tactics with a completely grotesque, unconscionable, politically motivated attack on petitioner which couldn't have been done without the helping hand of corrupt law enforcement officers and preferential treatment given to the true criminals by the courts. Petitioner has demonstrated nonstop evidence and has gone above and beyond to seek

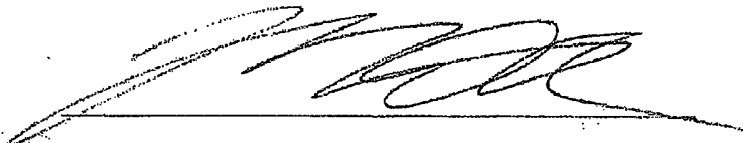
vindication along with holding the truly guilty parties responsible yet to no avail due to the petitioner being public enemy number one due to the outrageous civil and criminal liability the State of Mississippi has imposed on itself in a situation that in no way can Plausible Deniability ever be asserted as a defense to its culpably negligent actions. That added with the continued fictitious petitions filed by petitioner's ex-girlfriend and mother of his now 6-year-old child, Phyllis Marie Crowder-Kester show that the situation is spiraling out of control through organized crime, Criminal and Civil Conspiracy, and The false reporting of crimes, ALL OF WHICH should be prosecuted under the RICO Act yet the State and its agencies have chosen to stand down and continue standing down. It would appear through the lack of care shown by Defendant in this cause (State) that its agencies tasked with creating reports and deterring crimes has in fact been complicit in the ongoing fraud consisting the false reporting of crimes, further giving off all impressions that the Defendant is aiding and protecting the criminal acts of true criminals to protect itself from the legal liability it brought on itself. The complete culpable negligence shown has continued to compound the ongoing crisis and has now risen to uncharted levels. Petitioner hereby asserts the claims he has made were made to the best of his ability and asserts under a signed and sworn affidavit that he was the target of a politically motivated quid-pro-quo witch-hunt where he was charged with a crime that never even occurred, and further that he never could have committed. Petitioner has been and continues to be denied the equal protections of the laws which exist to provide protections and relief from the Federal Government from such abuse by the states, and petitioner continues to be victimized by false petitions filed in Lafayette County Chancery Court as well as Olive Branch Municipal Court and all stemming from a connection between Crowder, her attorneys, and state/county/city officials. It outrages the petitioner that a simple arrest and lie told over three years ago now has created a full-blown constitutional crisis, and there is no end in sight without relief granted on this motion and for action to be taken against the truly criminal parties demonstrating a willingness for the Defendant to purge itself of its complicit, negligent, and unconstitutional decisions. The level of involvement amounting to fraud which show all signs of public corruption becomes increasingly evident when the other legal matters are given a closer look by a man who swore a never-expiring oath to his country to protect and defend its constitution.

WHEREFORE ALL PREMISES CONSIDERED

Movant/Petitioner prays that this court grant his motion for relief from judgement or order by granting Movant/Petitioner an evidentiary hearing to present and examine such claims brought forth which further go to proving petitioner's innocence in the criminal cause LK17-295, or to dismiss judgement all together due to new evidence surfacing in this matter. Movant/Petitioner also would request that a copy of this motion be given to the District Attorney's Office to investigate and prosecute the criminal acts committed by others who conspired and have directly targeted petitioner for their own personal gain.

Movant/Petitioner also prays for any other general or special relief to which he may be entitled

Respectfully Submitted this 23rd Day of December 2020



Matthew Oliver Reardon

Moyant/Petitioner/Plaintiff

117 CR 401

Oxford, MS 38655

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Affidavit

STATE OF MISSISSIPPI
COUNTY OF LAFAYETTE

The undersigned, MATTHEW REARDON, being duly sworn, hereby deposes and says:

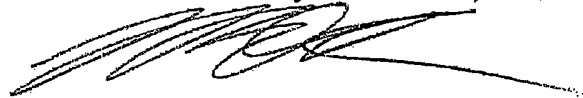
1. I am over the age of 18 and am a resident of the State of Mississippi. I have personal knowledge of the facts herein, and, if called as a witness, could testify completely thereto.

2. I suffer no legal disabilities and have personal knowledge of the facts set forth below.

3. This sworn affidavit is intended for use on MRCP Rule 60 Motion filed on the 23rd Day of December in the Circuit Court of Lafayette County.

I declare that, to the best of my knowledge and belief, the information herein is true, correct, and complete.

Executed this 23rd day of December, 2020.



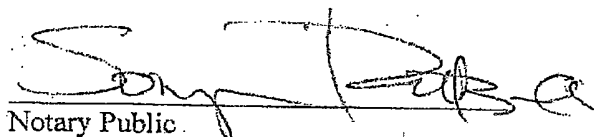
Matthew Reardon

NOTARY ACKNOWLEDGMENT

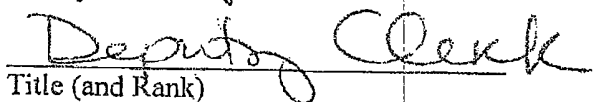
STATE OF MISSISSIPPI, COUNTY OF LAFAYETTE, ss:

On this 23rd day of Dec., before me, Matthew Reardon, personally appeared Matthew Reardon, known to me (or satisfactorily proven) to be the persons whose names are subscribed to the within Affidavit, and, being first duly sworn on oath according to law, deposes and says that he/she has read the foregoing Affidavit subscribed by him/her, and that the matters stated herein are true to the best of his/her information, knowledge and belief.

In witness whereof I hereunto set my hand and official seal.



Notary Public



Title (and Rank)

My commission expires January 2nd 2024

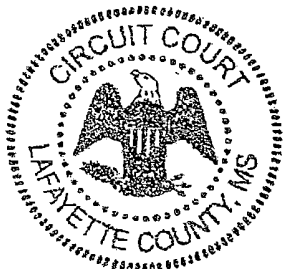


Exhibit A

IN THE CIRCUIT COURT OF LAFAYETTE COUNTY, MISSISSIPPI

MATTHEW REARDON	)	
PETITIONER/PLAINTIFF	)	
	)	
V.	)	NO. LK17-295
	)	LAFAYETTE COUNTY
	)	FILED
	)	JUL 07 2020
STATE OF MISSISSIPPI	)	JEFF BUSBY
DEFENDANT	)	CIRCUIT CLERK
	)	BY CMS D.C.

MOTION FOR POST CONVICTION RELIEF

Comes now the Petitioner, Pro Se, and files this his Motion to set aside his plea of guilty and sentence rendered thereon and in support thereof would show unto the Court the following:

1.

That Petitioner waived formal indictment in the Third District of the Circuit Court of Lafayette County, Mississippi for Aggravated Stalking, to-wit: an AR15 rifle with intent to place Todd and/or Ashley Lynch in reasonable fear of great bodily injury, a copy of said Criminal Information was filed in this Court on the 6th day of July, 2017 and attached hereto as Exhibit "A"

2.

That on Petitioner plead guilty to the aforementioned alleged crime and was sentenced by Circuit Court of Lafayette County, Mississippi, on the 6th of July, 2017 in cause number LK17-295 to five years (5) in the custody of the Department of Corrections with the balance of sentence (five years) (5) to be served on supervised probation, a true copy of which is attached hereto as Exhibit "B".

3.

That this Motion is filed pursuant to MS Code 99-39-5 (Mississippi Uniform Post-Conviction Relief Collateral Act) and is filed in the correct jurisdiction and venue

4.

That the Respondent was in direct violation of the Petitioner's 1st, 8th, and 14th constitutional rights at the time the plea was given

5.

That petitioner's guilty plea was involuntary due to a denial of his due process rights as guaranteed by the United States and State of Mississippi Constitutions, thus making his plea of guilty a violation of the laws of the State of Mississippi.

6.

That petitioner received inadequate representation by his legal counsel on record, in which adequate council representation likely would have resulted in an outright dismissal of the State's charge. Furthermore, Petitioner only met with his legal council one time and no discovery motion was ever requested by Petitioner's legal council.

7.

That the state has refused to comply with a Freedom Of Information Act (FOIA) request for information regarding the phone call received on May 24, 2017 which through the state's own admission on a more recent public records request ultimately led to the charge being levied against Petitioner. A copy of State's admission to receiving a phone call and basing their allegation upon the information received is attached hereto as Exhibit "C".

8.

That there exists additional evidence of material facts, not reasonably discoverable at the time of involuntary plea was given and not previously presented and heard, which requires vacation of the conviction or sentence in the interest of justice

WHEREFORE, PREMISES CONSIDERED, Plaintiff prays that this Court will enter an Order vacating and setting aside the guilty plea herein and the sentence in cause number LK17-295.

Respectfully submitted

Matthew Oliver Reardon
Petitioner/Plaintiff

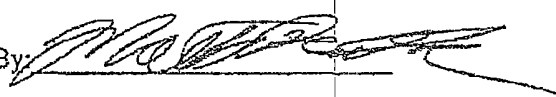
By: 

Exhibit A

CRIMINAL INFORMATION

Aggravated Stalking
Miss Code Ann. 97-3-107(2)
Nm 5 years, or a \$3,000 fine or both

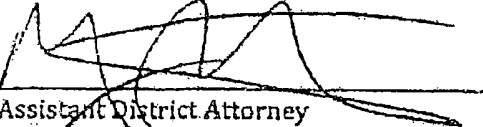
STATE OF MISSISSIPPI
COUNTY OF LAFAYETTE

CAUSE NO.: LK17-295

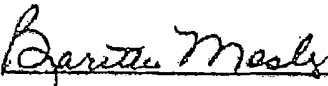
COMES NOW the State of Mississippi, by and through the District Attorney in and for the Third Circuit Court District of Mississippi, and charges by Criminal Information that, upon information and belief, that the said:

MATT REARDON

late of the County and State aforesaid on or about ~~June, 2016~~ ^{or before May 8, 2017}, in the County and State aforesaid, and within the jurisdiction of this Court, did unlawfully, willfully, feloniously commit the crime of stalking as defined in section 97-3-107 (1) and did so while displaying a deadly weapon, to wit: an AR15 rifle with the intent to place the Todd and/or Ashley Lynch in reasonable fear of great bodily injury, in violation of section 97-3-107(2) of the Mississippi Code of 1972, as amended, which offense is punishable by not more than 5 years imprisonment and a \$3,000 fine or both, contrary to the form of the statute and against the peace and dignity of the State of Mississippi.


Assistant District Attorney

FILED: 7-6, 2017

 CLERK

Recorded: _____, 2017

_____, CLERK

STATE OF MISSISSIPPI
In the Circuit Court of LAFAYETTE COUNTY
Cause/Case No. 1817-295

TO THE MISSISSIPPI DEPARTMENT OF CORRECTIONS:

NOTICE OF CRIMINAL DISPOSITION

You are hereby notified that at the JULY 2017 Term of the Circuit Court,
Judge John Kelly Luther presiding, the following disposition was
imposed for the crime(s) hereinafter described:

- I. A. Disposition(s) Reported:
- | | |
|---|---|
| ☐ Prisoner Commitment | ☐ Suspended Sentence/Probation |
| ☐ Revocation | ☐ Acquittal |
| ☐ Non-Adjudication | ☐ Other |
| ☐ Bad Check Div. Pgm. | ☐ RID |
| ☐ House Arrest/ISP | ☐ Shock Probation |
| ☐ Restitution in _____ Cnty | |
| ☐ Parchman Alcohol & Drug Program | |
| ☒ Guilty Plea | ☐ Guilty Plea after _____ days Trial |
| ☐ Jury Verdict after _____ Days in Trial | ☐ Rev. Hearing |

II. Name MATT REARDON Alias _____
SSN [REDACTED] Race W Sex M Date of Birth [REDACTED]
Last Known Residence _____

Place of Birth ATLANTA GA Country of Citizenship _____
Alien Registration/Immigration # _____ FBI # _____

III. Count Charge Cyberstalking
Sentenced MSCode 97-3-107(2) Indicted MS Code 97-3-107(2)
Count Charge _____ Indicted MS Code _____
Sentenced MSCode _____ Indicted MS Code _____
Count Charge _____ Indicted MS Code _____
Sentenced MSCode _____ Indicted MS Code _____

IV. Date of Sentence 07/06/2017 Indictment Date 07/07/2017 DA Bar# 000010650
Sentence(s) Imposed by Order: Count SUPERVISED PROBATION BALANCE OF SENTENCE
Credit (Days) _____ Count _____
Count _____ Count _____

	TO BE SERVED	SUSPENDED	PROBATION	POST RELEASE	METHOD OF DISP.
Count					SUPERVISED PROBATIO
Count					
Count					

Conc: _____
Cons: _____

Conditions of Sentence: ☐ Habitual ☐ Psychological/Psychiatric ☐ Alcohol/Drug
Other: NO CONTACT W LYNCH'S BANISHED FROM LAFAYETTE EXCEPT MANDA CHAN COURT

V. Dates Confined _____ to _____ to _____ to _____
Released on Bond Pending Appeal _____ to _____
Currently Housed In _____

VI. Fine _____ Indigent Fee _____ Restitution _____ Court Costs _____
Conditions of Payment _____

By: BARETTA MOSLEY
LAFAYETTE COUNTY COURT
July 07, 2017

Send Prisoner Commitments, Provisional Sentence Orders and Revocation Orders To:
Records Department
MDOC (Fax: 601-973-3879)
P.O. Box 24388
Jackson, Ms 39205
Court Statistics Division
Administrative Office of Courts (AOC)
P.O. Box 117
Jackson, MS 39205-0117

Send Suspended Sentence/Probation Notices, Provisional Sentence Orders and Rev. Orders to:
Data Operations
MDOC (Fax: 601-973-3879)
P.O. Box 24388
Jackson, MS 39205
Court Statistics Division
Administrative Office of Courts (AOC)
P.O. Box 117
Jackson, MS 39205-0117

Send Acquittal/Other Notices to: Court Statistics Division, AOC at its address listed above.

STATE OF MISSISSIPPI

Case/Case No. LK17-295

In the Circuit Court of LAFAYETTE COUNTY

TO THE MISSISSIPPI DEPARTMENT OF CORRECTIONS:

NOTICE OF CRIMINAL DISPOSITION

You are hereby notified that at the JULY 2017 Term of the Circuit Court,
Judge John Kelly Luther presiding, the following disposition was
imposed for the crime(s) hereinafter described:

- I. A. Disposition(s) Reported: ☐ Prisoner Commitment ☐ Suspended Sentence/Probation
☐ Revocation ☐ Acquittal ☐ Other
A-1. Provisional Sentence ☐ Non-Adjudication ☐ RID ☐ Shock Probation
☐ Bad Check Div. Pgm. ☐ Restitution in _____ CNTY
☐ House Arrest/ISP ☐ Parchman Alcohol & Drug Program
B. Conviction as a Result of: ☒ Guilty Plea ☐ Guilty Plea after _____ days Trial
☐ Jury Verdict after _____ Days in Trial ☐ Rev. Hearing

II. Name MATT REARDON Alias _____
SSN _____ Race W Sex M Date of Birth _____
Last Known Residence _____
Water Valley MS 38965
Place of Birth ATLANTA GA Country of Citizenship _____
Alien Registration/Immigration # _____ FBI # _____

III. Count Charge Cyberstalking
Sentenced MSCode 97-3-107(2) Indicted MS Code 97-3-107(2)
Count Charge _____
Sentenced MSCode _____ Indicted MS Code _____
Count Charge _____
Sentenced MSCode _____ Indicted MS Code _____

IV. Date of Sentence 02/21/2018 Indictment Date 07/07/2017 DA Bar# 900010650
Sentence(s) Imposed by Order: Count SUPERVISED PROBATION BALANCE OF SENTENCE
Credit (Days) Count _____
Count _____

	TO BE SERVED	SUSPENDED	PROBATION	POST RELEASE	METHOD OF DISP.
Count	_____	_____	_____	_____	SUPERVISED PROBATIO
Count	_____	_____	_____	_____	_____
Count	_____	_____	_____	_____	_____

Conc: _____
Cons: _____

Conditions of Sentence: ☐ Habitual ☐ Psychological/Psychiatric ☐ Alcohol/Drug
Other: NO CONTACT W LYNCH'S BANISHED FROM LAFAYETTE EXCEPT MANDA CHAN COURT

V. Dates Confined _____ to _____ to _____ to _____
_____ to _____ to _____ to _____
_____ to _____ to _____ to _____

Released on Bond Pending Appeal _____ to _____
Currently Housed In _____

VI. Fine _____ Indigent Fee _____ Restitution _____ Court Costs 630.50

Conditions of Payment PAYMENTS \$50 MONTH START 4/1/18

By: BARETTA MOSLEY
LAFAYETTE COUNTY COURT
February 21, 2018

Send Prisoner Commitments, Provisional Sentence Orders and Revocation Orders To:
Records Department Court Statistics Division
MDOC (Fax: 601-973-3879) Administrative Office of Courts (AOC)
P.O. Box 24388 P.O. Box 117
Jackson, MS 39205 Jackson, MS 39205-0117
Send Suspended Sentence/Probation Notices, Provisional Sentence Orders and Rev. Orders to:
Data Operations Court Statistics Division
MDOC (Fax: 601-973-3879) Administrative Office of Courts (AOC)
P.O. Box 24388 P.O. Box 117
Jackson, MS 39205 Jackson, MS 39205-0117
Send Acquittal/Other Notices to: Court Statistics Division, AOC at its address listed above.

Lafayette County Sheriff's Office

711 Jackson Avenue East, Oxford, MS 38655

Reporting Officer's Narrative

Exhibit C

Report Date:	Type of Incident	Complaint No:	Case Status
05/30/2017	97-3-107 - STALKING, REPEATEDLY FOLLOWING, HARASSING OR MAKING A THREAT	L17-05138	CLOSED

Narrative:

On 05-24-2017 I, Investigator Jarrett Bundren, was at the office and took a phone call in reference to a stalking/harassment complaint. I followed up on the threats and harassment that was reported to me. I was advised that there were a lot of threats on facebook by Matt Reardon, specifically toward Frank and Marlee's and Todd Lynch. I looked at Matt's facebook page and there were several videos and posts of Matt with guns verbally making threats toward Todd and his business. Todd said that he wanted to file charges. After further looking into the threats on facebook and other threats and harassment, Todd filed charges on Matt and Matt was arrested and booked in at Lafayette County Detention Center.

Reporting Officer	7530	BUNDREN, JARRETT	Approving Officer	C8797	CATHY CONNER
/ /			/ /		

IN THE CIRCUIT COURT OF LAFAYETTE COUNTY, MISSISSIPPI

MATTHEW REARDON

PETITIONER

VS.

CAUSE NO. L20-316

STATE OF MISSISSIPPI

RESPONDENT

ORDER DENYING RELIEF REQUESTED

This cause is before the Court on Petitioner's Motion for Post-Conviction Relief. The Court considered the relief requested in the motion pursuant to the Mississippi Uniform Post-Conviction Collateral Relief Act, Mississippi Code Annotated Sec. 99-39-1, *et seq.*

The Petitioner alleges, *inter alia*, the Respondent "was in direct violation of the Petitioner's 1st, 8th, and 14th constitutional rights at the time the plea was given." The Petitioner also alleges he received inadequate representation.

After reviewing the documents filed by the Petitioner, the Court finds it plainly appears from the face of the motion and prior proceedings that the Petitioner is not entitled to any relief. The Court finds the transcript of the plea and sentencing hearing in Petitioner's criminal cause for aggravated stalking (LK17-295) belies Petitioner's claims for relief.

Therefore, the Court is of the opinion the requested relief is not well taken and is hereby DENIED.

The Circuit Clerk is directed to provide a copy of this Order to the Petitioner.

SO ORDERED and ADJUDGED, this the 30th day of July, 2020.

FILE THIS THE 30th DAY OF
July, 2020
MINUTE BOOK CvMB PAGE 464
JEFF BUSBY, CIRCUIT CLERK
BY Chimera Suenro D.C.

[Signature]
KELLY LUTHER
CIRCUIT COURT JUDGE

Exhibit B

IN THE CIRCUIT COURT OF LAFAYETTE COUNTY, MISSISSIPPI

MATTHEW REARDON

v.

STATE OF MISSISSIPPI

)
) NO. L20-316
) JK-20
)

LAFAYETTE COUNTY
FILED
AUG 10 2020
JEFF BUSBY
CIRCUIT CLERK
BY: [Signature] DC

MOTION FOR REHEARING UNDER MISSISSIPPI RULE 59
BEFORE THE HONORABLE JUDGE KENT SMITH

Comes now before the court Matthew Reardon, your petitioner/plaintiff and appeals back to this court a motion for rehearing under MS rule 59 and would state unto the court the following facts:

- 1) That on July 7, 2020 a motion for post conviction relief was filed with this court, the trial court, asking for this court to vacate and set aside his guilty plea entered on July 7, 2017 on the following permitted grounds pursuant to MS Code 99-39-5 (Mississippi Uniform Post-Conviction Relief Collateral Act):
- A) That the respondent was in direct violation of petitioner's 1st, 8th, and 14th constitutional rights at the time the plea was given.
- B) That Petitioner's Guilty plea was involuntary due to a denial of his due process rights as guaranteed by the United States and State of Mississippi Constitutions, thus making his plea of guilty a violation of the laws of the State of Mississippi
- C) That Petitioner received inadequate representation by his legal counsel on record, in which adequate counsel representation likely would have resulted in an outright dismissal of the State's charge. Furthermore petitioner only met with his legal council one time and no discovery motion was ever requested by Petitioner's legal council.

- D) That the state has refused to comply with a Freedom of Information Act Request for information regarding the phone call received on May 24, 2017 which through the state's own admission on a more recent public records request ultimately led to the charge being levied against the petitioner.
- E) That there exists additional evidence of material facts, not reasonably discoverable at the time involuntary plea was given and not previously presented and heard, which requires vacation of the conviction or sentence in the interest of justice.
- 2) That on July 30, 2020 Circuit Court Judge Kelly Luther DENIED petitioner's motion for relief which was brought with merit, in good timing, and in the correct court and jurisdiction.
- 3) Petitioner alleges that his post-conviction relief motion was prejudicially denied with biasness and favorability shown to the respondent, as the grounds on which post-conviction relief was brought along with the alleged fraud conducted by the State and Lafayette County not only warrant but should in fact be interpreted as prejudicial against the petitioner for refusing to hold an evidentiary hearing on the facts and both the states willful refusal and obstructionist tactics in refusing to comply with a FOIA/Public Information Request for the key evidence the state used to compel its warrant and charge
- 4) That Judge Kelly Luther was made aware of these facts before the PCR was filed and there is a conflict of interest in said case calling for a response and recusal

I, Matthew Reardon petition this court for an evidentiary hearing of facts pursuant to MS rule 59 on this 10th Day of August, 2020.

IN THE CIRCUIT COURT OF LAFAYETTE COUNTY, MISSISSIPPI

MATTHEW REARDON

PETITIONER

VS.

CAUSE NO. L20-316

STATE OF MISSISSIPPI

DEFENDANT

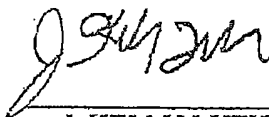
ORDER

This matter is before the Court on Petitioner's motion titled "Motion for Rehearing Under Mississippi Rule 59 Before the Honorable Judge Kent Smith." The Petitioner requests this Court reconsider its Order entered July 30, 2020 in which the Court, under Mississippi Code Annotated Sec. 99-39-11(2), summarily denied Petitioner's request for post-conviction collateral relief. The Petitioner also alleges the undersigned judge should recuse himself from this post-conviction matter.

The Court, being fully advised in the premises and having considered the arguments in Petitioner's motion for rehearing, finds that the motion is not well taken and is hereby DENIED.

The Clerk of the Court is directed to provide a copy of this Order to the Petitioner.

SO ORDERED AND ADJUDGED, this the 12 day of August, 2020.



J. KELLY LUTHER
CIRCUIT COURT JUDGE

FILE THIS THE 12 DAY OF
September, 2020
MINUTE BOOK CVMB PAGE 4731
JEFF BUSBY, CIRCUIT CLERK
BY Jeff Busby D.C.

Exhibit
IN THE CIRCUIT COURT OF LAFAYETTE COUNTY, MISSISSIPPI

MATTHEW REARDON
PLAINTIFF

V

STATE OF MISSISSIPPI
DEFENDANT

CAUSE NO. E20-316

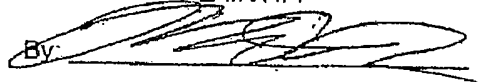
Motion for Recusal

Comes now MATTHEW REARDON, PLAINTIFF in the above-captioned cause, and respectfully moves that the Circuit Court Judge KELLY LUTHER recuse himself from this case on the following grounds:

CONFLICT OF INTEREST DUE TO BEING INFORMED OF ALL FRAUDULENT ACTIVITY CONDUCTED BY LAFAYETTE COUNTY, MS AND STATE OF MISSISSIPPI ON MONDAY JUNE 1ST, 2020 VIA EMAIL TO COURT ADMINISTRATOR KATHY STURDIVANT WHO IN TURN FORWARDED DETAILED EMAILS TO JUDGE KELLY LUTHER. PLAINTIFF WAS PASSED ADVICE BY JUDGE VIA COURT ADMINISTRATOR THAT HE WOULD NEED TO SEEK RELIEF VIA POST CONVICTION RELIEF IN ORDER TO HAVE SAID ISSUES HEARD AND ADDRESSED BY COURT. ON JULY 7, 2020 PETITIONER SUBMITTED POST CONVICTION RELIEF TO TRIAL COURT ASKING FOR RELIEF FROM THE COURT. JUDGE KELLY LUTHER PREJUDICIALLY DENIED MOTION WITHOUT EVEN ALLOWING AN EVIDENTIARY HEARING TO PRESENT FINDINGS OF EVIDENCE AND PROOF. IT IS THIS REASON ALONG WITH PETITIONER'S CASE BEING ASSIGNED TO JUDGE KENT SMITH THAT PETITIONER REQUEST IMMEDIATE, EMERGENCY RELIEF FROM THIS TRIAL COURT, AND PETITIONER FORMALLY ASKS FOR A WRITTEN RESPONSE FROM THIS COURT AS TO WHY JUDGE KELLY LUTHER IS DECIDING CASES FOR JUDGE KENT SMITH WITHOUT HOLDING SO MUCH AS AN EVIDENTIARY HEARING TO EXAMINE CLAIMS OF FRAUD COMMITTED ALONG WITH THE CONSTITUTIONAL RIGHTS OF PETITIONER BEING OUTRIGHT DESTROYED BY STATE AND COUNTY OFFICIALS IN AN OUTRAGEOUS ATTEMPT TO COERCE A FAVORED OUTCOME AND COVER IT UP, WHICH IT ULTIMATELY WOUND UP DOING. EVIDENCE OF EMAIL CORRESPONDENCE PASSED ALONG TO JUDGE LUTHER IS ATTACHED HERETO AS EXHIBIT A.

Respectfully submitted,

MATTHEW O. REARDON
PLAINTIFF

By: 

LAFAYETTE COUNTY
FILED

AUG 12 2020

JEFF BUSBY
CIRCUIT CLERK

By:  D.C.

Directive on LK17-295

Directive on LK17-295

MR Me

Mon, 01 Jun 2020 3:03:32 PM -0500

To "kathysturdivant2015" <kathysturdivant2015@gmail.com>

Tags 

Kathy,

I am looking for directive from Judge Luther on my case, LK17-295. In my efforts to gather all evidence to back the fact that I had inadequate legal representation in my case (which actually included a common interest of the other side by my attorney), I have uncovered numerous erroneous corrupt acts committed on behalf of the state. My 1st, 8th, and 14th amendment rights were trampled on, and everything was an organized act to prevent me from coming forward with information I had which would have had political implications on the then incoming mayor, Robyn Tannehill. I hold in my possession circumstantial evidence proving beyond any shadows doubt my innocence to the matter, and have requested the 302 from the sit down meeting with the FBI on May 25, 2017, the day before my arrest by Lafayette County, in which I had a death threat made on my life and had explained in that meeting that I purchased the AR-15 on May 20th as a way of protecting myself and my family. The erroneous framed charge on me stated on or before May 8th I put the Lynchs in fear of their life with that weapon but it is simply impossible and a bill of sale proves that. This was a brutal assassination of my rights in order to keep information from coming out that could potentially have political ramifications on the mayor, along with achieving the goal of the Lafayette County Sheriffs Dept of making the problem imposed by Deputy Timmy Pruitt (who arrested me May 1 2017 for my standing on public property with the state flag) go away. I have done numerous public records requests on Lafayette County and have uncovered even more information which has led to them now refusing to cooperate on producing the evidence I further need. I respectfully ask Judge Luther to allow me a hearing to present my findings, my proof, and show the obstruction tactics of the state in order to vacate the plea which was made under tremendous duress due to my 2 year old daughter (at the time) needing to be provided for, and having a lawyer who may as well have been part of the state's attorneys as he had me lie and say I committed the said crime in which I had complete evidence could never have been committed. I don't deserve to be stripped of my rights, and the people who orchestrated this atrocity deserve to be punished. They definitely shouldn't be allowed to hide behind a shield of a covenant to not sue when they so viciously orchestrated the complete decimation of an innocent citizen and US Marine Corps Veteran's constitutional rights. I wanted to allow Judge Luther the opportunity to see the evidence and overturn this injustice prior to me taking it to Federal Court in the Northern District

Please confirm receipt of this email

My best regards,

Matt Reardon
662-892-0132*Exhibit A (1/4)*

Re: Directive on LK17-295

Re: Directive on LK17-295

KA Kathy Sturdivant
Mon, 01 Jun 2020 8:49:22 PM -0500
To "Matt Reardon" <matt@mattreardon.com>

Tags 
Security  TLS [Learn more](#)

Received and thank you, Mr. Reardon.

On Mon, Jun 1, 2020 at 3:03 PM Matt Reardon <matt@mattreardon.com> wrote:


Exhibit A (2/4)

Re: Directive on LK17-295

Re: Directive on LK17-295

MR Me

Mon, 01 Jun 2020 9:45:24 PM -0500

To "Kathysturdivant2015" <kathysturdivant2015@gmail.com>

Bcc "matt" <matt@mattreardon.com>

Tags

Security TLS [Learn more](#)

Thank you, Ms Kathy.

When do you think you will have an answer from Judge Luther? My concern at the present moment is two things in particular. One being the 3 year statute of limitations, and the other being destruction of evidence. I have reason to believe through correspondence with the FBI is that the 302 from the interview that the FBI conducted on May 25th 2017 (where I produced evidence of the death threat made on me as well as information I had at that time on Rhea Tannehill was discussed) is MIA along with the video evidence of the meeting. Now based on the sheriffs department not complying through refusing to communicate back on my request for the recorded phone call supposedly from May 24, 2017, it leads me to believe that it either is damning information that further substantiates my claim and/or could be MIA as well, which leads me to feeling the need to draft a complaint to the northern district in order to prevent any evidence in question or any other evidence from disappearing. There is absolutely no doubt in my mind, which is backed by evidence, that this was a cooked charge that I was framed on and has had serious life altering implications on my life. The one thing I'm trying to get to the bottom of here is the question of was it done at the directive of public officials and even worse, for political purposes as all signs point to. The precedence this sets, if allowed to stand, is lethal to society and completely destructive to our constitution that has been framed in place for hundreds of years. So I guess the huge question at hand is this:

Will Judge Luther grant me an emergency hearing within the next week if possible in order for me to present evidence to the facts stated in order to at the minimum quash the covenant to not sue, with the ultimate goal of getting the plea and sentence vacated?

Thanks,

Matt Reardon
662-892-0132

----- On Mon, 01 Jun 2020 18:49:08 -0700 Kathy Sturdivant <kathysturdivant2015@gmail.com> wrote -----

Exhibit A (3/4)

Firefox

<https://mail.zoho.com/z>

KA Kathy Sturdivant
Tue, 02 Jun 2020 12:36:51 PM -0500
To "Matt Reardon" <matt@mattreardon.com>

Tags
Security  TLS [Learn more](#)

Mr. Reardon

Judge Luther has reviewed your emails and asked me to respond to you and let you know that in Mississippi, when someone wishes to challenge a plea of guilty, the rules need to be followed as outlined in the Mississippi Code for post-conviction relief. If you wish to have the issues you have raised to be heard in Court, please follow the rules as set forth in the Post-conviction Relief Act.

Thank you for your attention and perhaps you will find this helpful.

Sincerely
Kathy

Exhibit A (9/4)

Exhibit D

IN THE CIRCUIT COURT OF LAFAYETTE COUNTY, MISSISSIPPI
LAFAYETTE COUNTY
FILED

MATTHEW O. REARDON, PLAINTIFF

VS.

CAUSE NO. L20-316

STATE OF MISSISSIPPI, DEFENDANTS

AUG 26 2020

JEFF BUSBY
CIRCUIT CLERK

BY: CHS DC

MOTION TO COMPEL EVIDENCE

COMES NOW Plaintiff, Matthew O Reardon, pursuant to Rule 37, MRCP, and moves the Court to compel the production of requested public records from the Defendant whom is in gross willful contempt of the Public Records Act, not to mention the moral and fiduciary obligation in protecting and serving the better good of the public. Plaintiff prays that this court would assess any and all evidence which would go to show defendant's willful and contumacious refusal, to include it's obstructionist tactics which in turn prevent petitioner from proving his innocence and how defendant played a key role through what plaintiff alleges was an intentional criminal framing in 2017 cause number LK17-295. Plaintiff would further show that defendant is not only in violation of its own laws (state), but also Federal through 42 US Code 1985 "Conspiracy to Interfere with Civil Rights" along with Rule 26 (Duty to disclose), Rule 34 (Producing Documents) of the Federal Rules of Civil Procedure (FRCP). The Plaintiff provides this notice of violation upon the Defendant and prays that this court would direction and sanction defendant in order to bring defendant into compliance in order to prevent its further obstruction and alleged conspiracy to remove (and keep removed) Plaintiff's Civil Rights in his rightful effort to seek vindication and justice. In support thereof, Plaintiff would show unto the Court the following:

1.

That the Plaintiff filed Motion for Post-Conviction Relief (PCR) with this trial court on July 7, 2020. In said PCR, Petitioner raised 5 meritorious reasons this court should grant petitioner relief under PCR filed.

2.

That PCR was filed in the correct jurisdiction, the correct court, and in good timing, in which the PCR effectively tolled the Statute of Limitations from expiring the following day as Plaintiff had discovered new evidence proving his innocence, inadequate legal defense at the time, and occurrences of fraudulent activity committed and continuing to be committed on behalf of defendant. Plaintiff alleges the Defendant intentionally conspired to remove civil rights of another under Federal Law 42 US Code 1985, and further the successful deprivation of civil rights under 42 US Code 1983 in its continued obstruction in plaintiff's attempts to prove this through evidence plaintiff has collected in seeking the full restoration of his civil rights, which were savagely removed by defendant's knowledgeable and negligent actions.

3.

That on May 22nd, 2020 at 3:28pm, Plaintiff formally requested information on the phone call received by Investigator Jarrett Bundren, which department admitted it received on May 24, 2017, and by their own admission, it was from this initial phone call that the arrest warrant stemmed. Plaintiff asked for details (who made the call, time, details discussed) around that call to include any recording, as call was received at sheriffs department.

Evidence of such is attached hereto as Exhibit A

4.

That on May 28, 2020, After receiving no response, Plaintiff sent follow-up email to County Administrator Assistant Anthony Hudson (whom was plaintiff's point of contact) and courtesy copied Cathy Conner (Administrative Assistant of Lafayette County Sheriff's Department) in that email. *Evidence of such is attached hereto as Exhibit B.*

5.

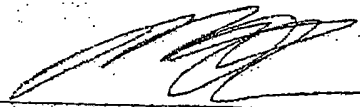
That Plaintiff contacted Lafayette County Attorney David O'Donnell on or around June 30th 2020 in attempts to compel county attorney to bring sheriff's department and county officials into compliance in producing the information requested which they had refused to produce. On June 31st County attorney said I should receive it within the hour which never happened, and on July 1st 2020 effectively "Scaled" the sought information as "privileged" at the county attorney's directive and refused to release said document/documents to plaintiff.

Plaintiff requests that the Court enter an Order compelling complete cooperation with Plaintiff's Request for Production of Documents and to produce requested document within 7 days of this motion being entered as allowed under the Mississippi Public Records Act, even though defendant has had 3 months to produce requested record. Further, Plaintiff asks this court to issue a formal directive about the Mississippi Public Records Act governed by the Mississippi Ethics Commission, and the importance of compliance in the interest of justice, equality, and public safety. Finally, Plaintiff moves for this court to issue and enter an order to preserve any and all evidence related to the prior cause LK17-295 along with this cause L20-316. While this should be something expected of any state agency, the alleged misconduct and fraud surfacing from this case up to this point has made the plaintiff feel that he would be doing himself an injustice if he didn't formally request that upon this court.

WHEREFORE, PREMISES CONSIDERED, the Plaintiff moves this Court for an Order compelling Plaintiff to respond to the producing of requested records, for costs and such other relief as the Court deems the Plaintiff is entitled.

Respectfully submitted,

Matthew O. Reardon, Plaintiff

BY: 

8-26-2020

Cathy Conner

From: Lisa Carwyle
Sent: Wednesday, May 20, 2020 8:20 AM
To: Cathy Conner; Joey East
Subject: FW: Ninja Forms Submission

From: Lafayette County <hello@confitdesign.com>
Sent: Wednesday, May 20, 2020 8:13 AM
To: Lisa Carwyle <LCarwyle@lafayettecoms.com>
Subject: Ninja Forms Submission

Description of Record:	Original Affidavit/Police Report alleging Aggravated Stalking on Todd & Ashley Lynch
Date of Record (best estimate):	May 2017
Public Agency or Board Having Custody of Record:	Lafayette County Sheriffs Department
Your Name:	Matthew
Your Address:	2785 Highway 145
Your Phone Number:	6628920132
Your Email:	matt@mattreardon.com
Signature of Person Requesting Record:	Matthew Reardon
Today's Date:	05/20/2020

Exhibit A

8/26/2020

Zoho Mail - Print

From : Matt Reardon <matt@mattreardon.com>
To : "AHudson" <AHudson@lafayettecoms.com>
Cc : "Matt Reardon" <matt@oxfordoutlaw.com>
Subject : Re: FW: Matt Reardon
Date : Fri, 22 May 2020 15:28:12 -0500

Thank you for this report.

However, this is clearly not the original report made. This is a post arrest narrative that was made on the 30th of May, 4 days after my arrest, and likely made just prior to me walking into my bond hearing where my rights were viciously slaughtered by Carolyn Bell. It's starting to make more sense now why there was an approximate 10 minute meeting had with Carolyn Bell by a particular sheriffs deputy prior to coming out and adjudging the obnoxious \$150,000 bond and refusing to let me address the court.

I am needing the the undoctored police report of the interaction made when the call came in. Not post arrest. I am also going to need to get the recording of the initial phone call made on the 24th of May to deputy Jarred Bundren as that should fall into the same scope of the information I am requesting. I would also like an answer from the department as to why I was charged with putting the Lynch's in fear of their life with said weapon on or before May 8th, 2017 and why the attached report was created on May 30th, the day of my bond hearing 4 days after my arrest.

On a side note, I'd love to question Jared Bundren as to what information he referenced as threatening towards Todd Lynch. Simply a gun in the background doesn't constitute a threat, and any law enforcement officer that prejudicially views it as such in order to make a felony arrest should be condemned and removed from duty. I will go back and review, but it seems that I was targeted and charged for speech that never threatened any physical harm on the Lynch's, which should have fallen under protections of the First Amendment. This should have been a civil matter from the start if anything and never a criminal matter

Thanks,

Matt Reardon

----- On Fri, 22 May 2020 12:55:14 -0700 Anthony Hudson <AHudson@lafayettecoms.com> wrote ---
--

Here you go Mr. Reardon.

From: Lisa Carwyle <LCarwyle@lafayettecoms.com>
Sent: Friday, May 22, 2020 2:52 PM

Lafayette County Sheriff's Office

711 Jackson Avenue East, Oxford, MS 38655

Reporting Officer's Narrative

Report Date:	Type of Incident	Complaint No:	Case Status
05/30/2017	97-3-107 - STALKING, REPEATEDLY FOLLOWING, HARASSING OR MAKING A THREAT	L17-05138	CLOSED

Narrative:

On 05-24-2017 I, Investigator Jarrett Bundren, was at the office and took a phone call in reference to a stalking/harassment complaint. I followed up on the threats and harassment that was reported to me. I was advised that there were a lot of threats on facebook by Matt Reardon, specifically toward Frank and Marlee's and Todd Lynch. I looked at Matt's facebook page and there were several videos and posts of Matt with guns verbally making threats toward Todd and his business. Todd said that he wanted to file charges. After further looking into the threats on facebook and other threats and harassment, Todd filed charges on Matt and Matt was arrested and booked in at Lafayette County Detention Center.

Reporting Officer	7530	BUNDREN, JARRETT	Approving Officer	C6797	CATHY CONNER
/ /			/ /		

8/26/2020

Zoho Mail - Print

To: Anthony Hudson <AHudson@lafayettecoms.com>
Subject: FW: Matt Reardon

From: Cathy Conner <cconner@lafayettesheriff.net>
Sent: Friday, May 22, 2020 2:51 PM
To: Lisa Carwyle <LCarwyle@lafayettecoms.com>
Subject: Matt Reardon

I am attaching the request he made for Todd and Ashley Lynch.

IN THE CIRCUIT COURT OF LAFAYETTE COUNTY, MISSISSIPPI

MATTHEW REARDON

PETITIONER

VS.

CAUSE NO. L20-316

STATE OF MISSISSIPPI

DEFENDANT

ORDER

This matter is before the Court on Petitioner's motions titled "Motion for Rehearing Under Mississippi Rule 59 Before the Honorable Judge Kent Smith," "Motion for Recusal," and "Motion to Compel Evidence."

The Petitioner requests this Court reconsider its Order entered July 30, 2020 in which the Court, under Mississippi Code Annotated Sec. 99-39-11(2), summarily denied Petitioner's request for post-conviction collateral relief. The Court finds the motion for reconsideration is not well taken and is hereby DENIED. Consequently, the Court finds Petitioner's Motion to Compel Evidence to be MOOT.

Additionally, the Petitioner alleges the undersigned judge should recuse himself from this post-conviction matter. The Court finds the Petitioner's request for recusal to be without merit and hereby DENIED.

The Clerk of the Court is directed to provide a copy of this Order to the Petitioner.

SO ORDERED AND ADJUDGED, this the 5th day of September, 2020.


J. KELLY LUTHER
CIRCUIT COURT JUDGE

FILE THIS THE 9th DAY OF

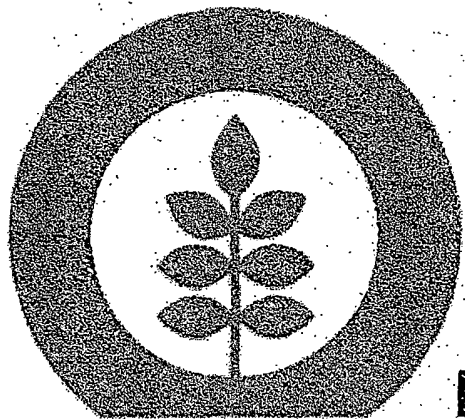
Sept, 2020
MINUTE BOOK CNA 3 PAGE 4704

JEFF BUSBY, CIRCUIT CLERK
BY S. Potts D.C.

**the
Local
Voice**

Exhibit E

Second page at bottom



**The
City
of
Oxford,
Mississippi**

Oxford, Mississippi Board of Aldermen Meeting Agenda for Tuesday, June 6, 2017 at 5 pm

230
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Notice that certain commission members will be included in the meeting via teleconference, subject to City of Oxford Code of Ordinances Section 2-82. Agenda item attachments and meeting minutes are available for download here.

1. Call to order.
2. Adopt the agenda for the meeting.
3. Mayor's Report
4. Authorize the approval of the minutes of the regular meeting on May 16, 2017 and corrected minutes for the regular meeting on April 24, 2017.
5. Authorize the approval of accounts for all city departments.
6. Consider the consent agenda:
 1. Request approval of an intern in the Municipal Court Department. (Braxton Tullos)
 2. Request approval of the retirement of an employee in the Buildings & Grounds Department. (Braxton Tullos)

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3. Request approval to employ a full-time communications officer in the Oxford Police Department. (Braxton Tullos)
4. Request approval to employ four reserve officers in the Oxford Police Department. (Braxton Tullos)
5. Request approval to hire two full-time records clerks in the Oxford Police Department. (Braxton Tullos)
6. Request approval to hire seasonal employees in the Environmental Services Department. (Braxton Tullos)
7. Request approval to hire an Inventory Control Assistant in the Oxford Electric Department. (Braxton Tullos)
8. Request permission for the director of the DUI training grant to travel to teach for state training from May thru September, in accordance with the requirements of the grant.
9. Request permission for seven officers to attend the MS Association of School Resource Officers summer training from June 12-16, 2017 in Biloxi, MS at a total cost of \$1,375.00 plus per diem. (Joey East)
10. Request permission for one officer to attend Active Shooter training on June 21, 2017 in Biloxi, MS at no cost. (Joey East)
11. Request permission for one officer to attend MS Accreditation Manager's Meeting on June 21, 2017 in Biloxi, MS at an estimated cost of \$218.00 plus per diem. (Joey East)
12. Request permission for two officers to attend Interview and Interrogation training from June 26-30, 2017 in Moorehead, MS at an estimated cost of \$200.00 plus per diem. (Joey East)
13. Request permission for two officers to attend IPMBA Police Cycling course from July 24-28, 2017 in Biloxi, MS at an estimated cost of \$1,096.00 plus per diem. (Joey East)
14. Request permission for three officers to attend Command College on July 16-21, 2017 in Oxford, MS at a total cost of \$350.00. (Joey East)
15. Request the approval of the following taxi drivers for Flying Tuk: Rebecca Robertson, Javier Sanchez, Robert Tuttleton, James A. Jones, and Peyton Overstreet. (Joey East)
16. Request permission for one officer to attend School Resource Officer Basic Course from July 16-20, 2017 in Pearl, MS at an estimated cost of \$550.00 plus per diem. (Joey East)
17. Request permission for three officers to attend DARE Officers Association Training from July 16-20, 2017 in Biloxi, MS at an estimated cost of \$597.00 plus per diem. (Joey East)

7. Matt Reardon to address the board regarding the state flag.

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8. Edith Hayles to address the board regarding the North MS Regional Center.
9. Meredith Rawl to address the board regarding activities for the 4th of July.
10. Update on first responder program. (Mark Heath)
11. Adopt a retirement resolution for Gwen King in the Oxford Police Department.
12. Adopt a retirement resolution for Luster King in the Oxford Electric Department.
13. Adopt a retirement resolution for Billy Lamb in the Buildings & Grounds Department.
14. Authorize the Mayor to sign an acceptance letter to receive MSOF grant money with no match. (Jimmy Allgood)
15. Request approval of the FY 2018 budget for the Oxford Electric Department. (Rob Neely)
16. Request approval of Amendment No.1 to the Conservation Easement for Oxford Commons II, LLC and authorize the Mayor to sign same.
17. Request approval of a Preliminary and Final Plat for Case 2157, Parkway Centre II located at 2720 West Oxford Loop, being further described at PPINs 35448, 35623, and 17955. (Judy Daniel)
18. First reading of a proposed ordinance amending Sections 74-7 and Sections 74-8 of the Code of Ordinances. (Joey East)

- BOA Doc-s Final Part 2_gun.pdf
- BOA Doc-s Final.pdf
- Sec 74-7 and 74-8 Clean Copy_gun.pdf

1. Discuss taxi parking.
2. Request approval to accept water, sewer, and streets in Rosemont subdivision and allow the bond to be reduced to 150% of estimated cost of the completion of the sidewalks and striping. (Bart Robinson)
3. Consider an executive session.
4. Adjourn.

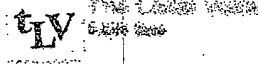
Questions regarding this agenda? Call 662-236-1310, or contact Ashley Atkinson, City Clerk: aatkinson@oxfordms.net

Auxiliary aids and services may be available to individuals with disabilities upon twenty-four (24) hours request by contacting Braxton Tulios, City of Oxford ADA Coordinator at 662-232-2453.

« Oxford, Mississippi Board of Aldermen Meeting Agenda for Tuesday, June 20, 2017 at 5 pm

Oxford, Mississippi Board of Aldermen Meeting Agenda for Tuesday, May 16, 2017 at 5 pm »

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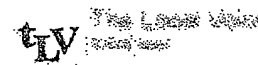
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3 hours ago

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Lafayette County Sheriff's Department Arrest Three for Aggravated Assault After Shooting



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FAX COVER SHEET

TO	sc clerk
COMPANY	Court of Appeals
FAX NUMBER	16013592407
FROM	Madelyn Reardon
DATE	2021-10-06 21:41:26 GMT
RE	2020-CP-01259-COA

COVER MESSAGE

appellant rebuttal to state response